



CHAPTER xxxi

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-nine to the thirtieth day of September one thousand nine hundred and fifty and for other purposes. [30th July 1949.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council 2 & 3 Geo. 5. (Finance Consolidation) Act 1912 as amended or extended by c. cv. subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-nine regulated by the London County Council (Money) Act 1948:

11 & 12 Geo. 6.
c. xxxvi.

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-nine to the thirtieth day of September one thousand nine hundred and fifty (hereinafter referred to as "the financial period 1949-1950") should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1949-1950 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council :

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1949-1950 are set out in Part I of the schedule to this Act :

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1949-1950 are set out in Part II of the said schedule :

1 Edw. 8. &
1. Geo. 6.
c. xlviii.

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1949-1950 are set out in Part III of the said schedule :

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1948 authorised to expend or lend but which were not before the first day of April one thousand nine hundred and forty-nine expended or lent :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title and
construction.

1. This Act may be cited as the London County Council (Money) Act 1949 and shall be read and have effect as one with the principal Act.

Interpretation.

2. In and for the purposes of this Act—

“ the Council ” means the London County Council ;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act ;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-nine to the thirty-first day of March one thousand nine hundred and fifty both dates inclusive ;

“ the following six months ” means the period from the first day of April one thousand nine hundred and fifty to the thirtieth day of September one thousand nine hundred and fifty both dates inclusive ;

“ the financial period 1949-1950 ” means the financial year and the following six months ; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1949-1950 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure on capital account during financial period 1949-1950.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

4.—(1) The bodies and persons to whom the Council may under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act lend money during the financial period 1949-1950 and who may under those powers borrow from the Council during that financial period shall be the bodies and persons mentioned in the first column of Part II of the schedule.

Loans to bodies and persons during financial period 1949-1950.

(2) The sums which may be so lent and borrowed shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of the said Part II in relation to such bodies and persons respectively.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the financial period 1949-1950 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts

Amount of further expenditure and loans which Treasury may authorise in case of insufficiency.

specified in the second and third columns respectively of Part III of the schedule.

Periods for
repayment of
loans to certain
bodies and
persons.

6. Except as otherwise provided by the principal Act any money lent by the Council to bodies and persons in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

Application
of Local
Authorities
Loans Act
1945 &c.
8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

7. It shall not be lawful for the Council to exercise for the purposes mentioned in this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 and of any orders for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

The SCHEDULE referred to in the foregoing Act

12 & 13 GEO. 6

London County Council
(Money) Act, 1949

Ch. xxxi

PART I

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1949 TO 30TH SEPTEMBER 1950 FOR CAPITAL EXPENDITURE

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure			Estimated requirement for year ending 31st March 1950 (6)	Estimated requirement for six months ending 30th September 1950 (7)
		Total parliamentary estimate (3)	Expenditure to 31st March 1949 (approximate) (4)	Revised estimate where necessary (5)		
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London contributions towards cost of improvements carried out by the City of London Corporation and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 475,255	£ 30,250
2. Local Government Act 1888 and sundry Acts relating to bridges.	Reconstruction and widening of Deptford Creek Bridge Construction of new Wandsworth Bridge ... Construction of new Waterloo Bridge ...	* * *	— — —	— — —	26,000 930 10,580	17,250 — —
3. Local Government Act 1888.	Newington Sessions House ...	*	—	—	8,620	—
	Carried forward ...	...	...	...	521,385	47,500

SCHEDULE—continued

Acts for the purposes of which money may be expended (1)	Purposes of expenditure (2)	Particulars in cases in which there was a parliamentary estimate of expenditure			Estimated requirement for year ending 31st March 1950 (6)	Estimated requirement for six months ending 30th September 1950 (7)
		Total parliamentary estimate (3)	Expenditure to 31st March 1949 (approximate) (4)	Revised estimate where necessary (5)		
6						
4. London County Council (General Powers) Act 1925.	Brought forward ...	£ ...	£ ...	£ ...	£ 521,385	£ 47,500
5. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property in connection with the widening of the Strand between George-court and Villiers-street.	*	—	—	29,120	24,000
6. Children and Young Persons Act 1933.	Acquisition of property and execution of works in connection with street improvements at Vauxhall Cross.	617,000	202,180	294,000	1,305	—
7. London County Council (General Powers) Act 1934.	Acquisition of property additions and alterations to and equipment of approved schools and remand homes.	*	—	—	33,000	360
8. Housing Acts 1936 to 1944 and other Acts relating to housing.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.	†145,750	20,867	67,000	10,740	—
	Acquisition of property erection of dwellings and other purposes.	*	—	—	20,455,000	9,986,000
	Advances to persons or bodies of persons ...	*	—	—	290,000	145,000

12 & 13 GEO. 6

*London County Council
(Money) Act, 1949*

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9. London and Middlesex (Improvements &c.) Act 1936 and London County Council (Im- provements) Act 1948.	Acquisition of property and execution of works in con- nection with extension to Cromwell-road.	4,795,000	528,100	—	250,100	22,500
10. Public Health (London) Act 1936 and various Acts relating to main drainage.	Sludge storage and digestion reorganisation of main pumping machinery alterations to sludge vessels and other purposes.	*	—	—	335,000	185,000
11. London County Council (General Powers) Act 1937.	Acquisition of property in connection with improvements at Notting-Hill-gate and Westminster Bridge-road and the Western-avenue extension between Edgware-road and Marylebone-road.	2,107,000	301,629	—	295,590	100,000
12. Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 &c.	Contributions towards the green belt scheme contribution towards cost of swimming pool provision of additional open spaces &c.	*	—	—	1,400,000	567,000
13. London County Council (Tunnel and Improve- ments) Act 1938.	Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth Bridge and for the duplication of Blackwall Tunnel.	†3,933,250	70,070	—	116,760	125,000
14. London County Council (General Powers) Act 1939.	Acquisition of property and execution of works for the improvement of the south bank of the river Thames.	†1,702,000	253,180	—	416,000	96,000
15. London County Council (Improvements) Act 1939.	Acquisition of property in connection with the northern approach to Waterloo Bridge.	2,246,000	506,252	—	29,120	—
16. London Government Act 1939.	Provision of and alterations to accommodation and pro- vision of equipment &c. for supplies department.	*	—	—	86,185	5,820
	Carried forward	...	...	...	24,269,305	11,304,180

SCHEDULE—continued

(1) Acts for the purposes of which money may be expended	(2) Purposes of expenditure	Particulars in cases in which there was a parliamentary estimate of expenditure			(6) Estimated requirement for year ending 31st March 1950	(7) Estimated requirement for six months ending 30th September 1950
		(3) Total parlia- mentary estimate	(4) Expenditure to 31st March 1949 (approx- imate)	(5) Revised estimate where necessary		
		£	£	£	£	£
17. Education Act 1944 ...	Brought forward ...	...	...	...	24,269,305	11,304,180
	Acquisition of sites execution of works provision and equipment of schools and of premises for school health service and other purposes.	*	—	—	3,621,000	1,006,000
18. National Health Service Act 1946.	Acquisition and adaptation of property provision of and alterations to centres nurseries &c. and provision of equipment and vehicles.	*	—	—	679,000	270,500
19. Town and Country Planning Act 1947.	Acquisition of property execution of works compensation &c.	*	—	—	621,800	340,500
20. Civic Restaurants Act 1947.	Acquisition of property erection adaptation and equipment of premises &c. for civic restaurants.	*	—	—	173,560	65,000
21. Fire Services Act 1947	Acquisition of sites for new fire stations extensions to existing stations and provision of equipment.	*	—	—	219,950	50,000
22. London County Council (General Powers) Act 1947.	Erection of concert hall and incidental works ...	*	—	—	781,000	350,000

23. Children Act 1948	...	Acquisition of sites and property execution of works and provision of equipment in connection with children's services.	*	—	—	267,000	44,580
24. National Assistance Act 1948.		Acquisition of sites and property execution of works and provision of equipment.	*	—	—	350,000	51,365
25. London County Council (General Powers) Act 1948.		Acquisition of land for improvements at Brompton-road and High Holborn.	1,712,500	—	—	50,000	—
26. Any Act	...	To provide for possible expenditure for purposes authorised by Parliament (whether before or during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	*	—	—	1,000,000	500,000
							32,032,615
Carried forward							13,982,125
							£46,014,740

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—continued

Brought forward £46,014,740

PART II

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS

Bodies and persons to whom money may be lent (1)	During year ending 31st March 1950 (2)	During six months ending 30th September 1950 (3)
27. Governors or managers of educational institutions (including special and approved schools) committees of school treatment centres governors or committees of voluntary hostels homes and other establishments and (for purposes in connection with the performance of official duties) sundry officers of the Council.	£ 50,000	£ 25,000
28. Sundry persons under the Small Dwellings Acquisition Acts.	*60,000	*30,000
Total	110,000	55,000

£165,000

* The provision for advances to persons or bodies of persons under the Housing Act 1936 as extended by section 6 of the Building Materials and Housing Act 1945 is included under item 8 of this schedule.

PART III

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE

Purposes. (1)	During year ending 31st March 1950 (2)	During six months ending 30th September 1950 (3)
29. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule.	£ 4,000,000	£ 2,000,000

6,000,000

Carried forward £52,179,740

SCHEDULE—continued

Brought forward £52,179,740

PART IV

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1948 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1949 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing part of this schedule	Purposes of expenditure or loan	Amount (approximate)
		£
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	278,985
2	Local Government Act 1888 and sundry Acts relating to bridges.	24,990
3	Local Government Act 1888—Newington Sessions House.	8,620
4	London County Council (General Powers) Act 1925.	30,250
5	London County Council (Vauxhall Cross Improvement) Act 1931.	875
6	Children and Young Persons Act 1933 ...	23,130
7	London County Council (General Powers) Act 1934.	5,140
8	Housing Acts 1936–1944 and other Acts relating to housing.	12,949,500
9	London and Middlesex (Improvements &c.) Act 1936 and London County Council (Improvements) Act 1948.	232,735
10	Public Health (London) Act 1936 and various Acts relating to main drainage.	411,175
11	London County Council (General Powers) Act 1937.	150,000
12	Green Belt (London and Home Counties) Act 1938 Open Spaces Act 1906 &c.	1,967,000
13	London County Council (Tunnel and Improvements) Act 1938.	198,480
15	London County Council (Improvements) Act 1939.	29,120
16	London Government Act 1939	92,005
17	Education Act 1944	2,110,085
18	National Health Service Act 1946	668,335
19	Town and Country Planning Act 1947	962,300
20	Civic Restaurants Act 1947	238,560
23	Children Act 1948	86,740
	Carried forward... ..	20,468,025
		52,179,740

SCHEDULE—continued

Brought forward £52,179,740

Reference to number of item in a foregoing part of this schedule	Purposes of expenditure or loan	Amount (approximate)
	Brought forward	£ 20,468,025
24	National Assistance Act 1948	250,515
26	Any Act	1,493,640
27	Loans to governors or managers of educational institutions &c.	15,000
28	Loans to sundry persons under the Small Dwellings Acquisition Acts.	68,000
29	General enlargement of spending and lending power under Treasury sanction.	6,000,000
		28,295,180
		28,295,180

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY RAISE
MONEY BY BORROWING OR OTHERWISE).

		£	£
For Council	For year ending 31st March 1950.	11,451,420	
	For six months ending 30th September 1950.	12,351,140	
			23,802,560
For loans	For year ending 31st March 1950.	35,000	
	For six months ending 30th September 1950.	47,000	
			82,000
			£23,884,560

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